



File No.: EXP202314033

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on September 22, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 23, 2023, a complaint was received by this Agency presented by Mr. A.A.A. (hereinafter, the complainant) against GASTROUVAS, S.L. (hereinafter, the respondent) for not having attended to his right of access.

The complainant states that, after being dismissed by the respondent where he provided services and filing a labor lawsuit for this reason, he sent a burofax on August 7, 2023, received by the respondent on August 8, in which he requested:

“1-Copy of my personal data that is subject to processing by the company GASTROUVAS, S.L.

2-The name of the data processor, and all the authorizations for processing granted by the data controller to the data processor.

3-Images and videos captured in the company's facilities, where my image appears without third parties.

4-Financial data: Information about salaries, information on bank accounts used for the payment of salaries, contributions, deductions, and tax withholdings made during my provision of services in the company.

5-Internal communications made by the data controller with me: Emails, messages, or internal communications related to employment.

6-The purposes of the processing, as well as the categories of personal data being processed.

7-The recipients or categories of recipients to whom my personal data has been communicated, or will be communicated, including, where applicable, recipients in third international organizations.

8-Information on the adequate safeguards relating to the transfer of my data to a third country or to an international organization, where applicable.

9-The expected retention period, or if not possible, the criteria for determining this period.

10-If there are automated decisions, including profiling, significant information about the logic applied, as well as the importance and expected consequences of such processing.

11-If my personal data has not been obtained directly from me, the available information about its origin, and the date of its acquisition.

12-The existence of the right to request rectification, deletion, or limitation of the processing of my personal data, or to object to such processing.

13-The right to lodge a complaint with a supervisory authority.”

The complainant states that he has not received a response.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The respondent indicated that it received the complainant's request but that “(...) due to a specific and isolated human error, the request was not forwarded to the Security Contact of Gastrouvas, in accordance with the procedure included in Annex No. 1, so it was not aware of the right of access requested by the interested party until the receipt of this information request from this Agency.”

Therefore, they proceeded to send him a letter indicating that “In accordance with your request, we inform you that we cannot provide you with the information you require because we need you to specify your request.

(...) ”

(...) However, this right is not absolute and finds a limit in the protection of the rights of other individuals, so we could not provide you with a complete copy of documentation or recordings that may contain data of third parties.

(...) ”

Furthermore, the respondent states to the AEPD that “(...) • The complainant's request is manifestly excessive due to the large amount of data that he requires to be provided. In this regard, it is unlikely that we will be able to locate and retrieve all the requested information by conducting a reasonable search of the information available concerning the requester.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

In this regard, the claimant has been requested to specify their request in order to narrow down the search for their personal information, in accordance with the provisions of Article 13 of the LOPDGDD: “When the controller processes a large amount of data related to the data subject and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the data subject specify the data or processing activities to which the request refers before providing the information.”

- The claimant's request is manifestly unfounded, as Mr. A.A.A. does not intend to exercise the right of access; rather, their true intention is to cause disturbances to Gastrouvas. In this regard, after the claimant terminated the employment contract with Gastrouvas, they filed a labor lawsuit against the aforementioned entity in July and subsequently submitted the exercise of the right of access. We believe that they are requesting access to all the required information with the intention of providing it in the ongoing labor proceedings with this entity, which could clearly harm Gastrouvas, as it negatively affects our defense strategy.

Fifth. – Furthermore, in compliance with the principle of limitation of the retention period set forth in Article 5.1 of the GDPR, personal data must be deleted when they are no longer necessary for the purpose for which they were collected; in the present case, at the end of the employment relationship linking Gastrouvas with the claimant.

In this regard, at the time the request was received, the claimant was no longer an employee of Gastrouvas, so their personal data, in accordance with Article 32 of the LOPDGDD, were deleted, remaining blocked for the enforcement of possible liabilities arising from the employment contract, with access restricted, in accordance with the provisions of the aforementioned article, solely for the purpose of making them available to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, particularly the data protection authorities, for the enforcement of possible liabilities arising from the processing and only for the limitation period of such liabilities, thus access cannot be granted to the claimant.

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on November 16, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the responding party a hearing procedure, so that within ten working days they could present any allegations they deemed appropriate.

The responding party, in summary, reiterates what has already been indicated following the transfer of the complaint; that, due to a specific human error, they did not forward the request to the Security Contact of the entity, and that once they received the transfer of the complaint made by this Agency, they proceeded to respond to the claimant “(...) informing them that it is not appropriate to enforce their right of access to

4/14

consider their request manifestly excessive” in accordance with Article 12.5 of the GDPR, which states that the exercise of a right of access must be granted unless “the request is manifestly unfounded or excessive,” due to the large amount of data required to be provided, making it unlikely that all requested information can be located and retrieved through a reasonable search of the information available concerning the requester.

The responding party states that the Guidelines 01/2022 of the European Data Protection Board indicate that “(...) the data controller may ask the data subject to specify their request if it concerns a

large amount of data. Furthermore, in Example No. 5, a scenario is presented that resembles the present case:

"In the context of an employment relationship, in the case of a general access request, it is unclear whether the employee wants to receive all their data related to user logins, data about access to the workplace, data about payments made in the cafeteria, data about salary payments, etc. A request for specification made by the employer could, for example, clarify that the employee's interest is to understand, check, or verify to whom their performance evaluation has been transmitted. Without a request for specification, the worker would receive a large amount of information without having an interest in most of the data. (...)"

[Original text in English, translation performed by Gastrouvas]

The responding party reiterates that the complaining party "(...) intends to exercise the right of access, but their true intention is to cause harm to Gastrouvas."

"(...) We believe that they are requesting access to all the required information with the intention of submitting it to the ongoing labor procedure with this entity, which may cause clear harm to Gastrouvas, as it negatively affects our defense strategy. In this regard, we do not consider it appropriate to provide or exhibit documentation that may be presented as evidence in the ongoing judicial procedure in order to guarantee the confidentiality of the information contained."

The responding party continues to refer to Example No. 1 of the aforementioned Guidelines 01/2022, relating to an employer who dismisses a person, and that this person files a wrongful dismissal claim, indicating that the controller will not assess the request and will address it unless it is manifestly unfounded or excessive, and to Annex 3 of the same Guidelines, "As can be inferred from the content highlighted in the image, a request will be considered excessive: 'Cases where data subjects request the right of access with the sole intention of causing harm or detriment to the data controller.'"

The responding party concludes that

Fifth. - Furthermore, in compliance with the principle of limitation of the retention period set out in Article 5.1 of the GDPR, personal data must be deleted when they are no longer necessary for the purposes for which they were processed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/14

were collected, in the present case, at the conclusion of the employment relationship that links Gastrouvas with the claimant.

In this sense, at the time the request was received, the claimant was no longer an employee of Gastrouvas, so their personal data, in accordance with Article 32 of the LOPDGDD, was deleted, remaining blocked for the enforcement of possible liabilities arising from the employment contract, with access restricted, in accordance with the provisions of the aforementioned article, solely for its availability to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, particularly the data protection authorities, for the enforcement of possible liabilities arising from the processing and only for the statute of limitations period thereof, so access to the same cannot be allowed for the claimant."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten working days, they may formulate the allegations they deem appropriate. The claimant has indicated, in summary, and as far as this procedure is concerned, that "(...) The company responded late, where they only communicate to me that 'I should specify the request, in order to narrow down the search for my personal information, in accordance with the provisions of Article 13 of the LOPDGDD.' But on our part, the form sent to the company (which we will attach at the end of this document) contains the specific points that the AEPD establishes as the access rights form."

Furthermore, they indicate that "(...) the company insists that it can limit my right of access, considering that providing such data may harm its defense strategy in the labor procedure. This allegation is not a legal reason to restrict such access."

FIFTH: The responding party has been granted a hearing, and there is no record of any response being submitted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/14

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding their obligations, as well as to address complaints filed by an interested party and investigate, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the due response.

The result of this forwarding did not allow for the understanding that the claims of the claimant had been satisfied. Consequently, on November 16, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim presented was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of correcting any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation."

C/ Jorge Juan, 6

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected individual lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected individual to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected individual chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected individual.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In the present procedure, and taking into account the provisions of the first paragraph of this Legal Basis, it has been established that the claimant sent an exercise of rights to the respondent and that, during the instruction of this file, the respondent sent a letter informing them that “In accordance with your request, we inform you that we cannot provide you with the information you require because we need you to specify your request.” They also indicate that “this right is not absolute and finds a limit in the protection of the rights of other persons, so we could not provide you with a complete copy of documentation or recordings that may contain data of third parties.”

In this regard, it is appropriate to apply the provisions of the European Data Protection Board (hereinafter, EDPB), in Guidelines 1/2022, adopted on March 28, 2023, which approves the Application Guide of Article 15 of the GDPR, on the Right of Access of the Data Subject, which states that

“2.3.1 Completeness of information

35. Data subjects have the right to obtain, with the exceptions mentioned below, the complete disclosure of all data relating to them (for more details on the scope, see section 4.2). Unless the data subject expressly requests otherwise, the request to exercise the right of access shall be understood in general terms, covering all personal data relating to the data subject. Limiting access to part of the information may be considered in the following cases:

a) The data subject has explicitly limited the request to a subset. To avoid providing incomplete information, the data controller may only...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/14

to consider this limitation of the request from the data subject if it can be assured that this interpretation corresponds to the will of the data subject (for more details, see section 3.1.1, para. 51). In principle, the data subject will not have to repeat the request for the transmission of all the data that the data subject has the right to obtain.

b)

In situations where the data controller processes a large amount of data relating to the data subject, the data controller may have doubts as to whether a request for access, which is expressed in very general terms, is actually intended to receive information about all types of data being processed or about all areas of activity of the data controller in detail. These doubts may arise, in particular, in situations where there was no possibility to provide the data subject with tools to specify their request from the outset or where the data subject did not use them. The data controller then faces challenges in how to provide a complete response while avoiding the creation of an overflow of information for the data subject that the data subject is not interested in and cannot effectively manage. There may be ways to resolve this issue, depending on the circumstances and technical possibilities, for example, by providing self-service tools in online contexts (see section 5 on the layered approach). If such solutions are not applicable, a data controller processing a large amount of information related to the data subject may request the data subject to specify the information or processing referred to in the request before the information is provided (see Recital 63 of the GDPR). Examples of this may include a company with several fields of activity or a public authority with different administrative units, if the data controller finds that numerous data related to the data subject are processed in those branches. Additionally, a large amount of data may be processed by controllers that collect data on the frequent activities of the data subject over an extended period.

(...)

Example 4: A large insurance company receives a general access request by letter from a person who has been a client for many years. Although the deletion deadlines are fully respected, the company

actually processes a large amount of data relating to the client, as the processing remains necessary to fulfill contractual obligations arising from the contractual relationship with the client (including, for example, ongoing obligations, communication regarding contentious issues with the client and with third parties, etc.) or to comply with legal obligations (archived data that must be stored for tax purposes, etc.). The insurance company may have doubts as to whether the request, which was made in very general terms, is actually intended to cover all types of such data. This may be especially problematic if the insurance company only has one postal address for the data subject and, therefore, has to send any information on paper. However, the same doubts may also be relevant when the information is provided by other means.

If, in such cases, the data controller decides to request the data subject to specify the request, in order to fulfill its obligation to facilitate the exercise of the right of access (Article 12, paragraph 2, of the GDPR), the data controller...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
10/14

treatment will simultaneously provide significant information about its processing operations that could affect the data subject, informing about the relevant branches of its activities, databases, etc.

Example 5: In an employment relationship, in the case of a general access request, it is not clear by itself that the employee wants to receive all user access data, data about access to a workplace, data about agreements in the cafeteria, data about salary payments, etc. A specification request made by the employer could, for example, lead to clarification that the employee's interest is to understand or verify to whom their performance evaluation has been passed on. Without a specification request, the employee would receive a large amount of information, without having an interest in most of the data. At the same time, the employer would have to provide information about the different processing contexts that could affect the employee to allow the employee to specify the request sensibly.

It is important to emphasize that the specification request will not aim to limit the response to the access request and will not be used to conceal any information about the data or the processing of the data subject. If the data subject, who has been asked to specify the scope of their request, confirms that they wish to collect all personal data concerning them, the data controller must, of course, provide it in full.

In any case, the data controller must always be able to demonstrate that the way of processing the request aims to give the broadest effect to the right of access and that it is in line with its obligation to facilitate the exercise of the rights of the data subjects (Article 12, paragraph 2, of the GDPR). Subject to these principles, the data controller may await the response of the data subject before providing additional data according to the wishes of the data subject, if the data controller has provided the data subject with a clear view of all the processing operations that could affect the data subject, including especially those that the data subject may not have expected, if the data controller has also granted access to all data that the data subject has clearly directed, and if, furthermore, this information has been combined with a clear indication of how to access the remaining parts of the processed data.

c)

Exceptions or restrictions to the right of access apply (see further in section 6). In such cases, the data controller must carefully verify which parts of the information the exception refers to and provide all information that is not excluded by the exception. For example, the confirmation of the processing of personal data itself (component 1) cannot be affected by the exception. Consequently, information must be provided about all personal data and all information referred to in Article 15, paragraphs 1 and 2, that are not affected by the exception or restriction.

In section 6 ("Limits and restrictions of the right of access") of the aforementioned guidelines, it is indicated

C/ Jorge Juan, 6
www.aepd.es

“165. The right of access is subject to the limits resulting from Article 15, paragraph 4, of the GDPR (rights and freedoms of others) and from Article 12, paragraph 5, of the GDPR (manifestly unfounded or excessive requests).”

Subsequently indicating

“175. Article 12, paragraph 5, of the GDPR allows data controllers to refuse access requests that are manifestly unfounded or excessive. These concepts must be interpreted restrictively, as they should not undermine the principles of transparency and the rights of data subjects free of charge.”

In the present case, the responding party has stated that “The claimant's request is manifestly excessive due to the large amount of data that is required to be provided. In this regard, it is unlikely that we will be able to locate and retrieve all the requested information by conducting a reasonable search of the information available concerning the requester.”

However, it has already been indicated previously how the data controller may act in cases where they consider that the access request is generic, which is not the same as an excessive request.

The responding party has also indicated that “The claimant's request is manifestly unfounded, as Mr. A.A.A. does not intend to exercise the right of access; rather, his true intention is to cause disturbances to Gastrouvas. In this sense, after the claimant terminated the employment contract with Gastrouvas, he filed a labor lawsuit against the aforementioned entity in July and subsequently submitted the exercise of the right of access. We believe that he is requesting access to all the required information with the intention of providing it to the ongoing labor proceedings with this entity, which could clearly harm Gastrouvas, as it negatively affects our defense strategy.”

In this regard, it is necessary to refer again to the Guidelines on the right of access, which state “13. Given the overall objective of the right of access, the purpose of the right of access is not suitable to be analyzed as a prerequisite for the exercise of the right of access by the data controller in the context of their assessment of access requests. Therefore, data controllers should not evaluate ‘why’ the data subject is requesting access, but only ‘what’ the data subject is requesting (see section 3 on the analysis of the request) and whether they possess personal data related to that person (see section 4). Therefore, for example, the data controller should not deny access on grounds or suspicions that the requested data could be used by the data subject to defend themselves in court in the event of dismissal or commercial conflict with the data controller. Regarding the limits and restrictions of the right of access, see section 6.

Example 1: An employer dismissed a person. A week later, the...”

The individual decides to gather evidence to file a claim for unfair dismissal against this former employer. With this in mind, the individual writes to the former employer requesting access to all personal data concerning them, as the data subject, that the former employer, as the controller, processes.

The data controller will not assess the intention of the data subject, and the data subject will not have to provide the data controller with the reason for the request. Therefore, if the request meets all other requirements (see section 3), the data controller must comply with the request, unless the request is manifestly unfounded or excessive in accordance with Article 12(5) of the GDPR (see section 6.3), which the data controller must demonstrate.

(...)

The responding party has also stated that “in compliance with the principle of data retention limitation set out in Article 5.1 of the GDPR, personal data must be deleted when they are no longer necessary for the purposes for which they were collected, in this case, upon the termination of the employment relationship linking Gastrouvas to the claimant.

In this regard, at the time the request was received, the claimant was no longer an employee of Gastrouvas, so their personal data, in accordance with Article 32 of the LOPDGDD, were deleted, remaining blocked for the purpose of potential liabilities arising from the employment contract, with access restricted, in accordance with the provisions of the aforementioned article, solely for the purpose of making them available to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, particularly the data protection authorities, for the enforcement of potential liabilities arising from the processing and only for the limitation period of such liabilities, thus access cannot be granted to the claimant."

In this respect, it should be noted that when exercising the right of access, it cannot be accepted that, by carrying out the deletion of personal data, under the legal framework, the right of access exercised is left unanswered.

In this regard, it should be noted that personal data subject to the blocking modality means that their processing is not allowed, but it does not imply that the personal data that the controller had and processed during the contractual relationship cannot be made available to the affected party, in case, as happens in the present case, liabilities arise from their processing.

In accordance with personal data protection regulations, the deletion of data, as established in Article 32 of the LOPDGDD, must be carried out through blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified its processing, will not automatically imply its physical deletion. This action is subject to certain conditions aimed at ensuring and guaranteeing the affected party's right to the protection of their personal data.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/14

The blocked data will be made available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly the authorities for the protection of personal data, for the requirements of any potential liabilities arising from the processing and for the statute of limitations of these.

For all the above reasons, the claiming party has exercised the right of access regarding the personal data that concerns them, and the responding party must provide the claiming party with their right of access without negatively affecting the rights and freedoms of other individuals, all in accordance with the terms set forth in the GDPR.

It cannot be accepted that the response to be given may be expressed merely as an administrative procedure, such as the submission of allegations in the context of the present procedure, which was initiated precisely for not adequately addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the responsible parties must issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge GASTROUVAS, S.L. with NIF B86568508, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions set forth in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of

Article 83.6 of the GDPR, classified as very serious for the purposes of limitation in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and GASTROUVAS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/14

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es